Raj Kumar Nayyar vs The State (Nct Of Delhi) on 31 October, 2022

Author: Anoop Kumar Mendiratta

Bench: Anoop Kumar Mendiratta

$~15
* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 1693/2022
RAJ KUMAR NAYYAR ..... Petition
Through: Mr. Mohit Mathur, Sr. Advocate wit
Mr. Kaushal Kait, Mr. Kritagya K
Mr. Akshay Chowdhary, Mr. Rishan
Kashyap, Mr. Vinayak Chitale and
Mr. Harsh Gautam, Advocates.
versus
THE STATE (NCT OF DELHI) ..... Responde
Through: Mr.Laksh Khanna, APP for State wit
SI Amit Kumar, Crime Branch.
Mr. Pranut Sharma, Mr. S.P. Yada
Mr. Bhavtosh Sharma, Mr. Mukesh
Gupta, Mr. Mayank Ahuja and
Mr.Vivek Kadyan, Advocates for
complainant.
CORAM:
HON'BLE MR. JUSTICE ANOOP KUMAR MENDIRATTA
ORDER

% 31.10.2022

1. An application has been preferred on behalf of the petitioner under Section 439 Cr.P.C. for grant of regular bail in FIR No.215/2021, under Sections 419/420/120B/34 I.P.C. registered at PS: Crime Branch, New Delhi.

2. In brief, as per the case of the prosecution, present FIR was registered on the complaint of Gursimerdeep Singh, who stated that he runs a business of leather in the name of M/s Jalandhar Leather India Pvt. Ltd. situated in Jalandhar City, Punjab. In the month of June, 2020, his family friend Amit Talwar introduced him to one Ajay Shah @ Ajay Kumar Nayyar, (brother of present petitioner), at Jalandhar Gymkhana Club, who represented himself as nephew of Sh. Amit Shah, Union Home Minister, Govt. of India and assured him to get a tender worth Rs.90,00,00,000/- (Rupees Ninety Crores Only) from Govt. of India with respect to the supply of leather for the purpose of renovation of Rashtrapati Bhawan/President's Estate. After some time, representative of Ajay Shah, namely Ramesh Kumar, visited the factory and informed that he is inspecting officer from Union Government.

Further, the complainant visited Delhi and met Ajay Shah, who showed him a demand draft of Rs. 90,00,00,000/- (Rupees Ninety Crores Only) in the name of M/s Jalandhar Leather India Pvt. Ltd. and informed him that this demand draft is to be released in respect of the tender. Ajay Shah further asked the complainant to pay Rs.2,50,00,000/- (Rupees Two Crores Fifty Lacs Only) as processing fee of the said tender. Thereafter, several meetings were held with Ajay Shah at Delhi and an amount of Rs.3,90,00,000/- (Rupees Three Crores Ninety Lacs Only) was given through cash and RTGS on different occasions in lieu of said tender.

3. During investigation on 05.11.2021, complainant also alleged that Ajay Shah @ Ajay Kumar Nayyar showed him a demand draft of Rs.127 crores on his I-phone 12 in the name of his company M/s Jalandhar Leather Pvt. Ltd. and told that cost of tender has been extended from Rs.90 crores to Rs.127 crores.

4. It is further the case of the prosecution that Ajay Shah @ Ajay Kumar Nayyar along with his associates Raj Kumar Nayyar, Ashwani, Narayan Singh, Dharamvir, Vijay and others cheated him by wrongly representing himself as nephew of Sh. Amit Shah, Union Home Minister, Govt. of India.

5. On the other hand, learned counsel for the petitioner submits that petitioner has been falsely implicated and though the alleged transactions took place between 01.06.2020 to 31.12.2020, the present FIR was lodged only on 02.11.2021. Petitioner is further stated to be in custody since 10.11.2021. It is also submitted that the investigation has not been fairly conducted since only a blank notice under Section 41A Cr.P.C. was handed over to the petitioner by the Investigating Officer without specifying any date or time for joining the investigation. As such, there has been non-compliance of provisions of Section 41A Cr.P.C. by the investigating agency.

It is urged that petitioner in no manner is the beneficiary of the aforesaid amount and source of cash of Rs.3.9 crores with the complainant has not been fairly verified by the investigating agency. Reliance is also placed upon the relevant bank entries pertaining to period from 01.06.2020 to 31.12.2020.

6. The bail application is vehemently opposed by learned APP for the State. It is pointed out that during investigation, on analysis, it was found that amount of Rs.19 lacs (Rs.15 lacs on 11.12.2020 and Rs.4 lacs on 02.02.2021) was transferred by the complainant company to petitioner's account. Also an amount of Rs.21 lacs in cash was found to be deposited by the petitioner Raj Kumar Nayyar in his bank account No.32237582209, ICICI Bank during the period of 01.06.2020 to 01.08.2021. Further, during investigation details of account No.354301503734, ICICI Bank in the name of wife of the petitioner were obtained and it was found that a sum of Rs.11,97,000/- (Rupees Eleven Lacs Ninety-Seven Thousand Only) in cash was deposited during the period of 01.06.2020 to 07.10.2021. Further, Smt. Lata Nayyar, wife of the petitioner informed during investigation that amount was deposited by her husband Raj Kumar Nayyar/petitioner. Also, a photocopy of agreement regarding purchase of property at Dharamshala, Himachal Pradesh from the cheated amount of Rs.25 lacs was recovered at the instance of petitioner Raj Kumar Nayyar.

7. It is further pointed out that petitioner impersonated himself as Delhi Head of 'Aaj Tak' News Channel to the complainant, though he was working with 'Aaj Tak' News Channel only as Senior Video Editor for 15 years. Further, the petitioner paid an amount of Rs.52 lacs out of Rs.75 lacs from the cheated amount to Smt. Malvika Datta, (complainant in FIR No.566/2020, under Sections 420/34 IPC registered at PS: Moti Nagar, Delhi).

8. Learned counsel for the petitioner at this stage further submits that only the alleged documents are stated to have been recovered with respect to the property at Dharamshala, Himachal Pradesh, but there is no proof regarding the payment of amount from the account of petitioner from the alleged transaction.

It is also urged that petitioner was working with 'Aaj Tak' News Channel as Senior Video Editor for 15 years and as such the alleged amount, deposited in the relevant bank accounts, cannot be treated to be a part of the cheated amount as alleged by the prosecution. It is contended that allegations of impersonation have been concocted. It is submitted that a DD of Rs.18 lacs was prepared and handed over to Smt. Malvika Datta for the purpose of settlement of an alleged case pending against Ajay Shah @ Ajay Nayyar and petitioner was not a beneficiary.

9. I have given considered thought to the contentions raised.

The complainant has been defrauded, falsely representing links with Senior Minister in the Govt. of India, whereas no such tender was floated and granted to the complainant. The scam is writ large on face of documents whereby complainant was duped of Rs.3.90 crores. The role of petitioner does not appear to be above board as amount of Rs.19.2 lacs approximately was transferred in favour of the petitioner. The payment for settlement on behalf of main accused does not justify receiving of such huge amounts in the account of the petitioner. Also, further transactions have been pointed out, wherein the cheated amount has been deposited or used for the purpose of settlement with one Smt. Malvika Datta. Considering the serious nature of allegations and modus operandi adopted for fraud, no grounds for bail are made out Application is accordingly dismissed.

Nothing stated hereinabove shall tantamount to the expression of opinion on the merits of the case.

ANOOP KUMAR MENDIRATTA, J.

OCTOBER 31, 2022/R